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* **IN THE HIGH COURT OF DELHI AT NEW DELHI**
CNR No. DLHC010359262026
+ **W.P.(C) 11164/2026**
M L COLLEGE OF PHARMACY & ANR.

.....Petitioner

Through: Mr. Amitesh Kumar, Ms. Priti
Kumari, Ms. Vipasha Jain, Advs.

versus

PHARMACY COUNCIL OF INDIA

.....Respondent

Through: Adv. Chetanya Singh, Adv. Ilesh
Shukla, Adv. Chetan Sharma and Adv. Samarth
Tyagi

CORAM:
HON'BLE MR. JUSTICE JASMEET SINGH

ORDER
06.08.2026

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1. The petitioners have filed the present writ petitions under Article 226 of the Constitution of India seeking issuance of the letter of permanent approval with QR-Code under Section 12 (1) of the Pharmacy Act, 1948, in respect of Pharmacy Courses already approved by Pharmacy Council of India ("**PCI**").
2. It is submitted by counsels appearing for the petitioners that a Coordinate bench of this court *vide* its judgment dated 01.07.2024 passed in W.P. (C) No. 617/2024 and connected matters, has held that the requirement of yearly continuation of approval granted under section 12 (1) of Pharmacy Act, 1948 is illegal and without authority of law. It is further submitted that the PCI filed intra court appeal by way of an LPA bearing No. 614/2024 which was dismissed by the Hon'ble



Division Bench *vide* its judgment and Order dated 29.05.2026. It is also submitted that the PCI has filed SLP (C) (D.No.36158/2026) before the Hon'ble Supreme Court of India. However, Hon'ble Supreme Court of India *vide* its Order dated 17.06.2026 has declined prayer for an interim stay in the matter

3. Learned counsel appearing on behalf of the respondent, doesn't dispute the aforesaid factual position. However, he contends that any permanent approval to be issued by the PCI should be made subject to the outcome of the SLP pending before the Hon'ble Supreme Court of India.
4. I have heard the learned senior counsels and counsels for the parties.
5. This Court *vide* its judgment and Order dated 01.07.2024 passed in W.P.(C) No. 617/2024 and connected matters, considered the scheme of the Pharmacy Act, 1948, and while allowing the batch of the said writ petitions held as under:-

"107. The Court cannot, therefore, upheld the impugned decision to call on institutions, such as the petitioners, to obtain continuation of approvals granted to them on an yearly basis by applying the principle of contemporanea expositio.

XVIII. The further sequitur

108. As a result, paras 10(ii), (iii) and (iv) of the impugned Circular dated 14 December 2023 are clearly contrary to the Act and the Education Regulations. The decision, as reflected therein, to require approved institutions to obtain yearly continuation of approval, cannot therefore sustain legal



scrutiny and is liable to be quashed and set aside.

XIX. Re. demand for PERC

109. As I have found the requirement of yearly continuation of the approval granted under Section 12(1) of the Act to be illegal and without authority of law, there can be no question of any institution having to pay PERC repeatedly at the end of every year. The said demand has also, therefore, to fail.

Conclusion

110. In view of the aforesaid discussion, paras 10(ii), (iii) and (iv) of the impugned communication dated 14 December 2023, as well as the provisions to that effect as contained in the Approval Handbook, are quashed and set aside.

111. It is hereby declared that the approval granted to the course of study conducted by an institution under Section 12(1) is to the entire course of study and not to any one year thereof.

112. Such approval, once granted, is to apply, subject it is being liable to be withdrawn in accordance with Section 13. The PCI has no power or authority to call on any institution to obtain continuation of the approval granted under Section 12(1) every year, nor can the PCI require the Institution to pay PERC on an yearly basis to obtain continuation of the approval granted to the courses under Section 12 (1).

113. The only exception is in the case of the M.Pharm course, for which the approval would have to be renewed after 5 years, as required by the M.Pharm Regulations."



6. Further, PCI filed intra court appeal being LPA No.614/2024 which was dismissed by Hon'ble Division Bench of this Court vide judgment and order dated 29.05.2026 observing as under:-

"32. We may also note and observe that the submission made on behalf of appellant-PCI that 'Course' refers to each individual B.Pharm/D.Pharm Course is not in conformity with the plain language occurring in Section 12(1) but is also opposed to the provisions of the Regulations, 2014. Regulation, 2014 describes B.Pharm to consist of a certificate having passed the course of study and examination as prescribed in the regulations for the purpose of registration as a pharmacist to practice the profession under the Act, 1948. Similar provisions exist in M.Pharm/D.Pharm Regulations. Having regard to these regulations, the certificates leading to award of degree/diploma - B.Pharm/M.Pharm/D.Pharm are issued only after a student completes and clears the entire B.Pharm/M.Pharm/D.Pharm Course and therefore, a 'Course of Study' will be the entire B.Pharm/M.Pharm/D.Pharm Course and not any particular year thereof. What is noticeable here is that in Regulation 2 of Regulations, 2014 the only phrase which occurs there is 'Course of Study'. Regulation 3 only speaks about the duration of the course, according to which the duration of the B.Pharm Course shall be four academic years, with each academic year spread over a period of not less than 200 working days for the annual pattern of 100 working days for



each semester.

33. Thus, the submissions relating to interpretation sought to be given by the learned Senior Counsel for the appellant-PCI to Section 12(1), distinguishing ‘Course of Study’ and ‘Course’ in our opinion, is not tenable for the reason that ‘Course of Study’ and ‘Course’ have been used in the relevant provisions interchangeably.

34. Another submission made on behalf of the appellant-PCI is that if the PCI is not permitted to grant approval on an annual basis and the requirement of seeking continuous approval by the existing Pharmacy Institutions is dispensed with, the same will result in the extinction of the power of PCI to monitor institutions providing pharmacy courses to examine whether it continues to subscribe to the standards which it is required to maintain. Such submission, in our opinion is misconceived. The power of the PCI to monitor Pharmacy Institutions is not in any way hampered. In this regard, reference to Section 12(3) has rightly been made by learned Single Judge in the impugned judgment wherein the Pharmacy Institutions have been required to furnish such information as the PCI may require from time to time. Learned Single Judge has rightly observed in the impugned judgment that such power conferred by Section 12(3) is without any restriction, and if the PCI so chooses, it can even call upon an institution to provide the requisite data regarding its functioning at regular intervals.



35. It is also to be noticed that the power of inspection of a Pharmacy Institution is also available which has been vested in the Executive Committee of the appellant-PCI under Section 16 of the Act, 1948, that empowers the PCI to inspect any institution that runs an approved 'Course of Study'. Under this provision, the inspectors, on inspecting the Pharmacy Institutions, are required to submit a report to the Executive Committee along with the comments of the Institutions, if any, which are forwarded to the Government of the State in which the Institute is situated, as also to the Central Government. Therefore, in our opinion, the Act, 1948, contains adequate provisions to monitor the progress of an institution that has been accorded approval to a course under Section 12(1) of the Act, 1948 and hence, maintenance of standards can appropriately be monitored.

36. We may also note the provisions of Section 13 of the Act, 1948, which permits withdrawal of approval accorded to a Pharmacy Institution under Section 12(1) in a situation where the Executive Committee of the PCI reports to its Central Council that an approved course of study does not continue to be in conformity with the Regulations, 2014. The Central Council under Section 13 has been vested with adequate authority to consider the question of withdrawal of the declaration of approval accorded to the 'Course of Study'.

37. Learned Single Judge has also referred to the provisions



of Section 15 of the Act, 1948, which provides for the mode of declaration, according to which all declarations under Sections 12, 13 or 14 are to be made by a resolution passed in a meeting of the Central Council of the appellant-PCI, and they shall have effect only on their publication in the Official Gazette. Learned Single Judge has also opined that publication in the Official Gazette in itself is an indicator that the approval which is granted to a 'Course of Study' is as a whole and not to every year of 'Course of Study'. The reason given by the learned Single Judge for such a conclusion is that Section 15 cannot be read as envisaging every year publication in the Official Gazette of the approval of the 'Course of Study' conducted by a Pharmacy Institution.

38. Learned Single Judge has rightly recorded a finding that declaration under Section 12(1) declaring a 'Course of Study' conducted by an institution to be an approved 'Course of Study' for the purposes of admission to an approved examination for pharmacists is to be officially gazetted under Section 15 and therefore, what would be gazetted by the Central Council of PCI is a declaration that a course conducted by a Pharmacy Institution is an approved 'Course of Study' enabling students undertaking the 'Course of Study' to be admitted to an approved examination for pharmacist. Learned Single Judge has thus found that a gazette declaration is required to be with respect to the entire course of study. We are in agreement with such finding, having



regard to the nature of declaration required to be gazetted under Section 15 of the Act, 1948 and also considering the fact that declaration of approval of 'Course of Study' is made only on the satisfaction of the Central Council of the appellant-PCI, that too after an inquiry that the 'Course of Study' is in conformity with the Regulations, 2014.

39. The argument made by learned Senior Counsel for the appellant-PCI based on the objects of the Act, 1948, has appropriately been dealt with by the learned Single Judge in the impugned judgment, according to which the statement of objects and reasons does not contain anything which can justify the appellant-PCI requiring the existing Pharmacy Institutions to obtain yearly continuation of approval. We may also note that the submission on behalf of the appellant-PCI to defend the provisions which are under challenge before the learned Single Judge in the writ petitions, based on the principle 'Contemporaneous Expositio', has also been appropriately considered and answered by the learned Single Judge in the impugned judgment.

40. Learned Single Judge has concluded that such a principle applies to very old statutes where the intention of the framers of the statutes can be a factor at the point of time when such statutes were framed for the purposes of interpreting them. Learned Single Judge has, however, rightly concluded that this doctrine cannot be invoked to support the manner in



which the authority implementing the statute chooses to interpret it. Learned Single Judge has also opined that this principle does not have application where the statute is unambiguous and does not admit more than one meaning.

41. We may also add in this regard that the learned senior counsel representing the respondent-Colleges has also brought on record certain documents which are decisions relating to approval granted by the appellant-PCI from the year 1986 to 2020, which do not reflect the concept of granting approval on a year-to-year basis.

Learned Single Judge has also noticed that no records have been placed in evidence by the appellant-PCI to support that it has been the past practice of the PCI to accord approval to a 'Course of Study' on a year-to-year basis. In this view of the matter as well, the doctrine of 'Contemporaneous Expositio' for the purpose of interpreting Section 12 (1) of the Act, 1948, does not lend any support to the submissions made on behalf of appellant-PCI.

42. So far as the judgments cited by the parties in support of their respective submissions are concerned, the same have, in our opinion, been appropriately discussed by the learned Single Judge in the impugned judgment, and we do not find any good ground to take a view different from the view taken by the learned Single Judge."

7. Being aggrieved by the aforesaid decision, PCI filed SLP (C) D. No. 31658/2026. The Hon'ble Supreme Court of India vide Order dated



17.06.2026 has declined the prayer for interim stay. Thus, in my view, the petitioners i.e., existing and approved pharmacy institutions are entitled for “permanent approval” under Section 12 (1) of the Pharmacy Act, 1948.

8. The anxiety of the learned ASG is that there are certain institutions which do not match faculty with the students ratio, and are having zero faculty as per the AEBAS. The said submission is disputed by the learned counsels for the petitioners.
9. Be that as it may, in view of the judgment of a Coordinate Bench as well as the Hon’ble Division Bench of this Court, the respondent is always at liberty to take action in accordance with Section 13 of the Pharmacy Act, 1948, and this right of the respondent cannot and has not been interdicted in any manner.
10. Accordingly, the decision letters issued by the PCI to the petitioners showing intake of approved institutions as Zero (0) or reduced intake, are hereby quashed and set aside for being in contravention with the judgments of a Coordinate Bench dated 01.07.2024 and of the Hon’ble Division Bench dated 29.05.2026. Further, PCI is directed to issue letter of “Permanent approval” in favour of the petitioners with QR-Code in respect of existing approved Pharmacy Courses with duly approved initial intake within a period of 10 days from today, subject to the outcome of pending SLP before the Hon’ble Supreme Court. The respondent is also directed to update its website and reflect the status of petitioners, as institutions duly approved under section 12(1) of the Pharmacy Act, 1948.
11. In view of above, the present writ petitions along with pending



applications, if any, are disposed of.

AUGUST 6, 2026/ (MS)

JASMEET SINGH, J